



POLICE DEPARTMENT

August 13, 2015

MEMORANDUM FOR: Police Commissioner

Re: Police Officer Vincent Sanchez
Tax Registry No. 931136
Transit Bureau District 4
Disciplinary Case No. 2013-10990

The above named member of the Department appeared before me on July 20, 2015, charged with the following:

1. Said Police Officer Vincent Sanchez, while assigned to Transit District 4, on or about August 14, 2012, was discourteous to New York City Police Lieutenant [REDACTED], to wit: said Officer stated, "What are you checking up on me? When somebody asks me to do something, I do it. What do you think I'm a fucking child? I'm thirty-nine (39) years old."

P.G. 203 09, Page 1, Paragraph 2 - PUBLIC CONTACT-GENERAL
REGULATIONS

2. Said Police Officer Vincent Sanchez, while assigned to Transit District 4, on or about September 4, 2012, was discourteous to New York City Police Lieutenant [REDACTED], to wit: said Officer stated, "I think it is fucking bullshit that I just did the bag checks and now I have to walk a foot post and you should know better than to put me on a foot post and give me a fucking 0600 meal. I got time on the job, I'm tired of all the favoritism around here, certain people around here do the bag check and get to go in a car! I think that's fucked up."

P.G. 203-09, Page 1, Paragraph 2 PUBLIC CONTACT-GENERAL
REGULATIONS

3. Said Police Officer Vincent Sanchez, while assigned to Transit District 4, on or about September 4, 2012, having been given a lawful order by New York City Police Lieutenant [REDACTED] to return to the command and rejoin roll call, said Police Officer Sanchez refused to comply with said lawful order.

P.G. 203-03, Page 1, Paragraph 2 - COMPLIANCE WITH ORDERS
P.G. 203-05, Page 1, Paragraph 1 - PERFORMANCE ON DUTY

4. Said Police Officer Vincent Sanchez, while assigned to Transit District 4, on or about October 23, 2012, did fail and neglect to appear for a mandatory overtime tour for eight (8) hours and thirty five (35) minutes.

P.G. 203-05, Page 1, Paragraphs 1 & 2 - PERFORMANCE ON DUTY-
GENERAL REGULATIONS

P.G. 205-18, Pages 1 & 2 - ABSENT WITHOUT LEAVE – PERSONNEL
MATTERS

5. Said Police Officer Vincent Sanchez, while assigned to Transit District 4, on or about October 11, 2013, while assigned as a recorder in a Radio Motor Patrol vehicle, did fail and neglect to transmit a final disposition of a radio run assignment. (*As amended*)

P.G. 203-23, Page 1 Paragraph 6 - RADIO MOTOR PATROL RECORDER
DUTIES & RESPONSIBILITIES

6. Said Police Officer Vincent Sanchez, while assigned to Transit District 4, on or about October 11, 2013, having been assigned a radio run by the Communication Dispatcher did fail and neglect to respond to said radio run. (*As amended*)

P.G. 203-05, Page 1, Paragraph 1 - PERFORMANCE ON DUTY
GENERAL REGULATIONS

7. Said Police Officer Vincent Sanchez, while assigned to Transit District 4, on or about October 11, 2013, did wrongfully make false entries in said officer's Activity Log, to wit: said Police Officer indicated he responded to a radio run, which in fact he did not respond to. (*As amended*)

P.G. 203-05, Page 1, Paragraph 4 - PERFORMANCE ON DUTY- GENERAL
REGULATIONS

P.G. 212-08 Pages 1 and 2 - ACTIVITY LOGS - COMMAND OPERATIONS

The Department was represented by Javier Seymore, Esq., Department Advocate's Office, and Respondent was represented by John Tynan, Esq.

Respondent, through his counsel, entered a plea of Guilty to the subject charges and testified in mitigation of the penalty. A stenographic transcript of the mitigation record has been prepared and is available for the Police Commissioner's review.

DECISION

Respondent, having pleaded Guilty, is found Guilty as charged.

SUMMARY OF EVIDENCE IN MITIGATION

A mitigation hearing was held on the issue of the appropriate penalty. The Department Advocate maintains that the penalty should be a forfeiture of 20 vacation days, while Respondent argues for mitigation and suggests a forfeiture of eight vacation days. After listening carefully to the testimony of Respondent, observing his demeanor, reviewing Respondent's work history, reviewing precedent from analogous disciplinary cases, and considering the arguments of counsel, this tribunal is not persuaded that mitigation is appropriate here, and recommends that Respondent forfeit 20 vacation days as an appropriate penalty.

Respondent was the only witness called to testify on the issue of mitigation. After spending time as a U.S. Marine, a public school teacher, and with the Merchant Marines, Respondent joined the force on July 1, 2002. He's been with Transit District 4 for 12 years. Respondent, age 41, testified regarding four separate incidents that form the basis of the seven specifications to which he pleaded guilty:

1. Specification 1 (August 14, 2012)

Respondent acknowledged that on August 14, 2012, he was discourteous to Lieutenant [REDACTED] after the lieutenant had asked him to update his "Quest sheet", a monthly summary of his activity. Respondent, who was just coming back from three

regular days off and was well aware of his need to update the Quest sheet, promptly filled out the form as requested. Later that day, after Respondent assured him that the Quest form was up-to-date, the lieutenant asked to see it anyway. Respondent felt that Lieutenant [REDACTED] addressed him in an inappropriate tone, somewhat angrily, without any justification. In response, Respondent, "underneath his breath", made a comment about how he "guessed his word didn't mean anything in this command." The lieutenant pointed his finger at Respondent and started yelling at him; Respondent asked why he was yelling, and the two argued in raised voices for about eight minutes. Respondent denied using any profanity (Tr. 19-20), but did admit to saying, "Why are you checking up on me now? I'm not a child. If I'm told to do something, I would do it, you don't need to check up on me" (Tr. 34).

Soon after, as Respondent was discussing the situation with his supervisor, complaining that he was 39-years old and yet the lieutenant was speaking to him like he was a child, Lieutenant [REDACTED] came running out of his office and he and Respondent began arguing again. The two confrontations with the lieutenant lasted for approximately 20 minutes, after which Respondent resumed his tour (Tr. 21).

2. Specifications 2-3 (September 4, 2012)

Respondent testified that on September 4, 2012, after completing a four-hour, pre-tour overtime shift in which he was checking bags on the subway, he had a confrontation with Lieutenant [REDACTED]. Respondent was upset that he was given a foot post and a late meal after doing the pre-tour overtime (Tr. 24). He viewed it as "a personal attack," and complained to the lieutenant of favoritism within the command,

suggesting he was being penalized because he wasn't one of the lieutenant's favorites (Tr. 25-26). Respondent asked Lieutenant [REDACTED] to change his assignment; the lieutenant responded that he was unable to do that, but Respondent told him that because of his rank the lieutenant could have done it if he really wanted. After expressing his concern, Respondent did, in fact, work his original assignment (Tr. 26). Respondent did not recall cursing at the lieutenant during the exchange (Tr. 36).

3. Specification 4 (October 23, 2012)

Respondent admitted that on October 23, 2012, he didn't appear for his officially scheduled overtime tour, since he previously had switched overtime tours with another officer at the other officer's request (Tr. 28). Respondent also acknowledged that he did not notify any superiors about the swap in order to get approval; according to Respondent, such notification is required, but often not done (Tr. 29, 36, 42). Respondent did work the tour for which he traded (Tr. 37).

4. Specifications 5-7 (October 11, 2013)

Respondent described the events of October 11, 2013: first, after handling a job for a man on the train tracks, Respondent put over the radio an incorrect disposition code (Tr. 30). While he was filling out a report for that matter, Respondent received a call for another job regarding a man smoking on the subway. By this time, Respondent was near the end of his tour, and was concerned that if he did respond to the new job he would be late in returning to the precinct, and his request for "cash" overtime (as opposed to "time" overtime) would be frowned upon (Tr. 32, 41). Respondent decided to let a unit from

the next platoon handle the job, and immediately returned to his command so as not to incur any overtime (Tr. 32). However, Respondent put a disposition over the radio indicating that he had responded to the job, and made a false entry in his activity log to make it appear as if he had responded as well (Tr. 37).

PENALTY

In order to determine an appropriate penalty, Respondent's service record was examined. See *Matter of Pell v. Board of Education*, 34 NY 2d 222 (1974). Respondent was appointed to the Department on July 1, 2002. Information from his personnel record that was considered in making this penalty recommendation is contained in an attached confidential memorandum.

Respondent, who has been with the Department for 13 years and has no prior disciplinary history, came across as earnest as he provided his account of each of these incidents. He genuinely seemed to feel that he was not treated fairly on each of the four occasions in question, particularly by the lieutenants involved in the first two incidents.

However, notably absent from Respondent's testimony was any expression of remorse for his behavior, any sense that he recognized that there are better ways of dealing with situations such as these. For instance, nowhere in Respondent's testimony is there any indication that in the future, he would deal with conflicts with supervisors in a more professional, less confrontational manner. This tribunal is hopeful that Respondent will learn from this experience, and build on the respectful and conscientious attitude he displayed during this trial.

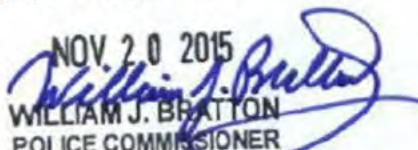
In several prior disciplinary cases, penalties of 15 or 20 days were imposed just for cases of discourtesy. In *Disciplinary Case No. 2011-4134 (2012)*, an eight-year officer with no disciplinary history negotiated a penalty of 20 vacation days for being discourteous to a desk officer, telling the sergeant, among other things, not to talk to him like a child. In *Disciplinary Case No. 2011-5794 (2014)*, a nine-year officer with one prior adjudication forfeited 15 vacation days after a mitigation hearing for being discourteous to a sergeant on two occasions. And in *Disciplinary Case Nos. 2010-3335 & 2012-7409 (2015)*, a 19-year officer with one prior adjudication forfeited 15 vacation days, 31 suspension days already served, and was placed on one-year dismissal probation for being discourteous to three sergeants (including complaining about a foot post assignment, and complaining about being checked up on), failing to comply with a sergeant's order that she stand by, making disparaging remarks about one sergeant to another, and telling a sergeant about a confidential EEO complaint she had filed.

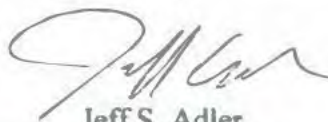
Here, not only does Respondent have two cases where he was discourteous to two separate lieutenants, he also has pleaded guilty to trading tours without proper authorization, and for falsifying paperwork in connection with a job to which he failed to respond. As such, the case precedent does not support mitigation in this case.

Taking all of this into account, this tribunal feels that the penalty should not be mitigated here, and I recommend imposing the Department's request of the forfeiture of 20 vacation days as the appropriate penalty.

Respectfully submitted,

APPROVED

NOV 20 2015

WILLIAM J. BRATTON
POLICE COMMISSIONER



Jeff S. Adler

Assistant Deputy Commissioner - Trials

POLICE DEPARTMENT
CITY OF NEW YORK

From: Assistant Deputy Commissioner – Trials
To: Police Commissioner
Subject: CONFIDENTIAL MEMORANDUM
POLICE OFFICER VINCENT SANCHEZ
TAX REGISTRY NO. 931136
DISCIPLINARY CASE NO. 2013-10990

Respondent was appointed to the Department on July 1, 2002. His last three annual evaluations were as follows: he received 3.0 ratings of "Competent" in 2013 and 2014, and a 2.5 rating of "Below Competent" in 2012. He has no medals.

[REDACTED]

[REDACTED]

Respondent has no prior formal disciplinary history. He was placed on Level 1 Force monitoring from May 23, 2005 to August 1, 2006 due to "negative performance/behavior." He was upgraded from Level 1 to Level 2 Performance monitoring from August 1, 2006 to February 1, 2008. Respondent was placed on Level 1 Performance monitoring on May 6, 2013 due to "below standard performance."

For your consideration.



Jeff S. Adler
Assistant Deputy Commissioner – Trials